

		In reply, Defendant states, “Gleisinger accepts that the May 5, 2025 reference extends to this discovery dispute and is concurrently submitting the complete motion record to the Referee in compliance with the Court’s July 1, 2026 Order.” (Reply, 2:20-21.) Gleisinger asserts the referee has failed to adjudicate this dispute. However, Gleisinger has made contradictory assertions regarding whether the referee has the authority to adjudicate this issue and the “Notice” Gleisinger filed with the referee was not clearly identified as a request for the referee to adjudicate the issue. The motion was filed on 1/30/26 in violation of this Court’s 4/22/25 order appointing a discovery referee. Defendant failed to withdraw this motion after being admonished to comply with that order. Plaintiff was forced to incur attorney fees responding to the motion which should have been pursued via the discovery referee. The motion is therefore denied and Plaintiff’s request for sanctions against Defendant is granted in the amount of \$1,050.00, due and payable within 30 days.
14.	LAW OFFICES OF MARK B. PLUMMER, PC VS. ALAI 2018-01002061	1. MOTION TO VACATE Defendant Nili Alai’s Motion to Amend or Vacate the 3/4/26 Order Reopening Discovery is DENIED. On 3/4/26, the Court granted Plaintiffs/Cross-Defendants’ ex parte application to reopen discovery as to movant’s First Amended Cross-Complaint. The 3/3/26 application to reopen discovery was served on 3/3/26 at 11:40 a.m. via email. The Court ruled on the application at approximately 1:30 p.m. on 3/4/26. The order stated no opposition had been filed and there were no appearances by any party. Defendant contends the application was untimely noticed and the Court did not have the opportunity to consider Defendant’s opposition, which was filed at approximately 9:30 a.m. on 3/4/26. California Rules of Court, Rule 3.1203(a) provides, “A party seeking an ex parte order must notify all parties no later than 10:00 a.m. the court day before the ex parte appearance, absent a showing of exceptional circumstances that justify a shorter time for notice.” Therefore, Plaintiffs’ notice of the application was nearly two hours late. Plaintiffs’ counsel also did not submit a declaration regarding notice in compliance with Rule 3.1204. This motion was filed on 3/24/26. The motion did not comply with the statutory ten-day deadline for a motion for reconsideration. (Code Civ. Proc. § 1008(a).) Moreover, although the Court retains inherent power to vacate or modify its prior discovery orders, the Court declines to do so here.

(Code Civ. Proc. § 128(a)(8).) Defendant has failed to demonstrate prejudice because Defendant's opposition to the ex parte application, if it had been considered by the Court, would not have changed the Court's 3/4/26 decision to reopen discovery.

Finally, Defendant argues Plaintiffs were required to file a motion under Code of Civil Procedure section 2024.050 in order to reopen discovery. However, Plaintiffs' application sufficiently requested relief based on factors set out in section 2024.050 even though it failed to cite the relevant Code section.

In future, the Court expects the parties to provide timely notice of any ex parte application. Failure to provide timely notice will be grounds for denial.

The trial date is firm and all parties are expected to diligently complete discovery in compliance with applicable deadlines. Failure to do so may result in monetary, issue, evidentiary, or terminating sanctions and/or waiver of discovery rights.

2. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Plaintiffs/Cross-Defendants' Motion to Compel Nili Alai's Further Responses to Requests for Admissions – Set One ("RFAs") is GRANTED.

Movants assert the discovery responses are required by the Court's 3/4/26 order reopening discovery. On 4/2/26, Respondent served objections only, asserting that the 3/4/26 order was improperly obtained and should be vacated.

In opposition, Alai reiterates her arguments discussed above regarding the 3/4/26 order. Alai also contends there are 95 RFAs and the RFAs in excess of the 35-request limit are not justified under Code of Civil Procedure section 2033.040.

As stated above, the Court declines to vacate or reconsider the 3/4/26 order.

The Court finds that movants' declaration under Code of Civil Procedure section 2033.030 is sufficient to justify the number of RFAs.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions because both parties had some justification for their position.

3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Plaintiffs/Cross-Defendants' Motion to Compel Siamak Nabili's Further Responses to Requests for Admissions – Set One is GRANTED.

Nabili raises similar arguments in opposition to those raised by Alai in her opposition discussed above.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

4. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES

Plaintiffs/Cross-Defendants' Motion to Compel Nili Alai's Further Responses to Form Interrogatories – Set One is GRANTED.

The motion is granted on the same grounds set out above.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

5. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES

Plaintiffs/Cross-Defendants' Motion to Compel Siamak Nabili's Further Responses to Form Interrogatories – Set One is GRANTED.

The motion is granted on the same grounds set out above.

Further, to the extent Nabili argues the requests are duplicative of previously-served discovery, Nabili has not shown that any duplicative requests are so burdensome as to justify denial of the motion.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

6. MOTION TO DISMISS

Defendant Nili Alai's Motion to Dismiss for Failure to Bring Action to Trial within Five Years is DENIED.

Legal Standard:

Code of Civil Procedure section 583.310 states, “An action shall be brought to trial within five years after the action is commenced against the defendant.”

Code of Civil Procedure section 583.340 states, “In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

- (a) The jurisdiction of the court to try the action was suspended.
- (b) Prosecution or trial of the action was stayed or enjoined.
- (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.”

“Exceptions to mandatory dismissal include: “(1) written stipulations or oral agreements made in open court extending the five-year time period; (2) exclusion from the computation of the five years any time period during which the jurisdiction of the court was suspended or the prosecution of the action was stayed; and (3) bringing the action to trial was impossible, impracticable, or futile. [Citations] (*Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, 1420–1421.)

Application:

Defendant contends this action was filed on 6/27/18 and the five-year deadline passed on 6/27/23. Alternatively, even assuming various stays were in place, Defendant argues the deadline passed on 5/1/25.

Plaintiffs contend Defendant’s litigation conduct has resulted in numerous stays, which total 1,527 days at this time, and the five-year rule does not expire until early 2028.

At the Trial Setting Conference on 12/12/25, the Court set trial for 9/18/25. There was no appearance by Defendant or her counsel at the Trial Setting Conference.

This case has been stayed for the following time periods:

1. 11/15/18 – 2/5/19 due to Defendant Alai’s filing of a vexatious litigant motion.
2. 6/27/19 – 9/10/19 due to Defendant’s filing of another vexatious litigant motion.
3. 12/18/18 – 11/12/20 due to filing and appeal of Anti-SLAPP Motion to Strike.
4. The foregoing three stays overlapped for a cumulative stay lasting from 11/15/18 – 11/12/20, i.e. 1 year, 11 months, and 28 days [728 days].
5. 9/24/21 – 3/8/22 due to Cross-Complainant Nabili’s filing of another vexatious litigant motion. (5 months, 14 days [165 days].)

		6. 10/3/23 – 2/13/24, due to Plaintiff’s filing of a vexatious litigant motion which was granted as to Alai’s cross-complaint on 2/13/24. (3 months 21 days [113 days].) 7. 4/24/24 – 2/4/25 based on the Court of Appeal’s order granting a stay of the entire case while vexatious litigant motion was on appeal pursuant to Defendant’s motion filed in the appellate court. (9 months 11 days [286 days].) 8. 6/10/25 – 11/25/25 due to Defendant’s filing of another vexatious litigant motion. (5 months 15 days [168 days].) In summary, the case was filed eight years, one month, and 15 days ago [2,967 days] as of 8/11/26. However, the entire case has been stayed for a total of at least 1,460 days, meaning the case has been active for only 1,507 days as of 8/11/26 and the case will be approximately four years, two months, and 23 days [1,545 days] old as of the trial date on 9/18/26. In reply, Alai argues the anti-SLAPP appeal in 2019 did not stay the entire case, which would reduce the total stayed time by 429 days because the case was not stayed as to the complaint between 9/10/19 and 11/12/20. In support of her argument, Defendant cites Judge Schwarm’s tentative ruling dated 1/14/20, which stated in part as to Defendant’s motion for a stay that, “The court DENIES the Motion to the extent it seeks to stay the entire action. The court GRANTS the Motion to the extent it seeks to stay Cross-Defendant’s (Jocelyn Plummer) pending Motion for Terminating Sanctions against the Cross-Complainants...” (Defendant’s Req. for Jud. Notice, p. 98.) However, Judge Schwarm’s final ruling reflected in the 1/14/20 minute order stated in part, “The Court DOES NOT Adopt and Confirm its tentative ruling as to Motion No. 1. The Parties have agreed to a discovery stay on this matter pending the determination of the appeal regarding the Court’s decision on the Anti-Slapp Motion. All parties agree to stay all proceedings pending the appeal.” Therefore, the entire case was stayed during the anti-SLAPP appeal pursuant to all parties’ agreement. Defendant’s litigation strategy has resulted in extensive stays of this case. Moreover, Defendant failed to appear and object to the trial date at the Trial Setting Conference on 12/12/25. Therefore, the motion is denied.
15.	ECKHOFF VS. FAMILIES FORWARD 2026-01574381	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Petitioner Stephanie Eckhoff’s motion for a Preliminary Injunction restraining and enjoining Respondent Families Forward from taking any action to further terminate her program status or her continued possession of the premises located at 17 Cascade, Irvine, CA 92605 is CONTINUED to 9/8/26 at 9:00 a.m. in Department C32.